

Postal Address:

Box 8114

104 20 Stockholm

Website:

www.imy.se

Email:

imy@imy.se

Phone:

08-657 61 00

1(23)

Tele2 Sverige Aktiebolag

Box 62

16494 Kista

Decision following supervision under the

Data Protection Regulation – Tele2

Sverige AB's transfer of

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Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection (IMY) finds that Tele2 Sverige Aktiebolag processes personal data in violation of Article 44 of the General Data Protection Regulation (GDPR) by using the tool Google Analytics, provided by Google LLC, on its website www.tele2.se during the period from August 14, 2020, to May 2023, thereby transferring personal data to a third country without fulfilling the conditions set out in Chapter V of the Regulation.

IMY decides, based on Articles 58.2 and 83 of the GDPR, that Tele2 Sverige Aktiebolag shall pay an administrative fine of 12 million (twelve million) Swedish kronor for the violation of Article 44 of the GDPR.

1. Account of the supervisory case

1.1 Processing

The Swedish Authority for Privacy Protection (IMY) has initiated supervision regarding Tele2 Sverige Aktiebolag (hereinafter Tele2 or the Company) following a complaint. The complaint concerns an alleged violation of the provisions in Chapter V of the GDPR related to the transfer of the complainant's personal data to a third country. The transfer is claimed to have occurred when the complainant visited the Company's website, www.tele2.se (hereinafter "Tele2's website" or "the Website") through the tool Google Analytics (hereinafter "the Tool") provided by Google LLC.

The complaint has been forwarded to IMY, as the responsible supervisory authority under Article 56 of the GDPR. The transfer has taken place from the supervisory authority in the country where the complainant submitted their complaint (Austria) in accordance with the Regulation's provisions on cooperation in cross-border processing.

The processing at IMY has occurred through written correspondence.

1.2 What is stated in the complaint

The complaint mainly states the following.

On August 14, 2020, the complainant visited Tele2's website. During the visit, the complainant was logged into their Google account, which is linked to the complainant's email address. The Company had implemented a Javascript code for Google's services, including Google Analytics, on its website. In accordance with point 5.1.1 b of the terms for Google's processing of personal data for Google's advertising products and also Google's terms for processing "the New Order Data Processing Conditions for Google Advertising Products," Google processes personal data on behalf of the data controller (i.e., the Company). Therefore, Google LLC should be classified as the Company's data processor according to the aforementioned terms.

During the complainant's visit to the Company's website, the complainant's personal data was processed by Tele2, at least the complainant's IP address and data collected through cookies. Some of the data collected was transferred directly to Google.

In accordance with point 10 of the terms regarding the processing of personal data for Google's advertising products, Tele2 has approved that Google may process personal data concerning the complainant in the USA. Such transfer of data requires legal support in accordance with Chapter V of the Data Protection Regulation.

According to the European Court of Justice ruling in Facebook Ireland and Schrems (Schrems II)², the company could no longer rely on a decision regarding an adequate level of protection for the transfer of data to the USA under Article 45 of the Data Protection Regulation. The company should not base the transfer of data on standard contractual clauses under Article 46.2 c of the Data Protection Regulation if the recipient country does not ensure an appropriate level of protection with regard to Union law for the personal data being transferred.

Google shall be classified as a provider of electronic communication services in the sense referred to in 50 US Code § 1881 (4)(b) and is thus subject to monitoring by US intelligence agencies in accordance with 50 US § 1881a (section 702 of the Foreign Intelligence Surveillance Act, hereinafter "702 FISA").³ Google provides the US government with personal data in accordance with these provisions. The company cannot therefore ensure an appropriate level of protection for the complainant's personal data when these are transferred to Google.

1.3 What Tele2 has stated

Tele2 Sverige Aktiebolag has primarily stated the following.

1.3.1 Who has implemented the Tool and for what purpose, etc.

Tele2 has made the decision to implement Google Analytics ("the Tool") on the Website, which has been done by embedding the code for the Tool on the Website. The company began phasing out the version of the Tool that is subject to IMY's supervision in the spring of 2022 and ceased using that version in June 2023 but has not been able to provide an exact date for this. The company is established in Sweden and has not made such a decision for any other European website.

The purpose of using the Tool is to compile and analyze statistics regarding visits to the Website.

The statistics regarding visits to the Website obtained via the Tool have only been evaluated by Tele2 in Sweden.

There is no possibility in the Tool's settings to make any choices regarding the transfer of data to the USA.

1.3.2 Recipients of the data

As part of Tele2's use of the Tool on the Website, information is disclosed to a number of actors, all of whom are data processors or sub-processors to the company, including Google LLC, Google Ireland Ltd, and their sub-processors.

² European Court of Justice ruling in Facebook Ireland and Schrems (Schrems II), C-311/18, EU:C:2020:559.

³ See <https://www.govinfo.gov/content/pkg/USCODE-2011-title50/html/USCODE-2011-title50-chap36-subchapVI-sec1881.htm> and <https://www.govinfo.gov/content/pkg/USCODE-2011-title50/html/USCODE-2011-title50-chap36-subchapVI-sec1881a.htm>.

1.3.3 The data processed in the Tool and what constitutes personal data

The information processed by Tele2 and Google within the framework of the Tool includes (i) information about the visit to the Website, e.g., which pages are displayed or which clicks are made, (ii) information about the device that accesses the Website, and (iii) information in the cookie (_ga cookie)

that consists of Client ID.

Tele2 uses the Tool service to analyze statistics regarding visits to the website www.tele2.se. All statistics and reports generated via the Tool are presented at an aggregated level and cannot be used to directly or indirectly identify any individual.

The generation of statistics and reports via the Tool is facilitated by the use of cookies on the Website. If a visitor to the Website has consented to the use of cookies, a cookie is placed in the visitor's browser. The information processed through the use of the Tool thus consists of the following categories:

(i) information about the visit to the Website, e.g., which pages are displayed or which clicks are made, (ii) information about the device that visits the Website, and (iii) information in the cookie (_ga cookie) that consists of Client ID.

(i) Information about the visit to the Website

Information regarding the visit to the Website does not in itself contain any information that can be used to directly or indirectly identify any individual, i.e., a page view or a click constitutes entirely anonymous information.

(ii) Information about the device that visits the Website

Information about the device that accesses and visits the Website consists, for example, of what type of browser and what IP address is used during the visit. Regarding IP addresses, static IP addresses are now used only by a few companies and organizations. Otherwise, exclusively dynamic IP addresses are used for all consumers. A dynamic IP address simply means that a device is assigned an IP address each time it connects to the internet, and the device is then assigned entirely new IP addresses during later connection instances. A device is not necessarily a computer, mobile phone, or tablet but can, in many cases, consist of a router or another device to which several computers, mobiles, or tablets connect, and the IP address can then not be traced back to the computer, mobile phone, or tablet but to the router.

To indirectly identify a person using a dynamic IP address, it is required that it is supplemented with a timestamp when it was used and that further information is obtained about who was assigned the IP address from the visitor's internet service provider.

In the Tool, the IP address is used solely for the purpose of analyzing statistics regarding visits to a website. For this purpose, a user of the Tool is not likely to have any legal means under Swedish law that would allow them to obtain the supplementary information required to indirectly identify an individual.

Furthermore, the IP address collected through the Tool is anonymized almost immediately after collection by replacing the numbers after the last dot in the IP address with 0 (for example, 192.169.0.100 becomes 192.168.0.0). Such IP anonymization occurs at the earliest possible stage during the collection process, and the complete IP address is never stored or processed on disk. For more information about anonymization

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of the IP address in the Tool, see

<https://support.google.com/analytics/answer/2763052?hl=en>.

Anonymization of the IP address means that the user of the Tool never has access to the complete IP address, and there are no means that a user of the Tool can reasonably use to indirectly identify a natural person (cf. recital 26 of the GDPR), resulting in the risk of identification being practically negligible.

(iii) Information in the _ga cookie

The information processed through the use of the _ga cookie consists of a Client ID. The Client ID consists of a random number with a timestamp that is stored in the _ga cookie. This Client ID can be used to see if a browser has previously connected to the Website. However, Tele2 cannot use the

Client ID alone or in conjunction with an anonymized IP address to directly or indirectly identify a natural person.

In light of the above, Tele2 believes it can be questioned whether Tele2 processes and transfers personal data to third countries at all. Given that some uncertainty is deemed to exist regarding the legal assessment of the aforementioned circumstances, Tele2 has chosen to apply the rules of the data protection regulation for the data processed within the framework of the Tool as a precautionary measure.

1.3.4 Categories of persons affected by the processing

The data concerns visitors to the Website. No special categories of personal data as defined in Article 9.1 of the data protection regulation are processed within the framework of the Tool. Tele2 cannot identify different categories of persons visiting the Website through the Tool. The Website is not aimed at children, nor any other specific category of registrants, and visitors to the Website do not need to provide any age or any other personal data processed in the Tool.

1.3.5 When the code for the Tool is executed and recipients are granted access

The Tool is activated and cookies are placed in the user's browser after the visitor has given their consent to the use of cookies. Anonymization of the IP address occurs at the earliest possible stage during the collection process, and the complete IP address is never stored or processed on disk by Google

(https://support.google.com/analytics/answer/2763052?hl=en&ref_topic=2919631).

1.3.6 How long the personal data being processed is stored

During the time the Tool is used, a storage period of up to 26 months can be set in the Tool. If the agreement for the Tool ceases to be valid, Google undertakes, according to the data processing agreement, to delete personal data in the Tool as soon as practically possible after the termination of the agreement, but no later than within 180 days.

1.3.7 Which countries the personal data is processed in

According to the information Tele2 has received from Google, the visitor's IP address is anonymized at the data center closest to where the visitor connects from. According to the terms of the agreement with Google, Google may process the data within the framework of the Tool in, among other places, the USA.

1.3.8 Tele2's relationship with Google LLC

Tele2 considers Google to be a data processor for the processing that occurs within the framework of the Tool, i.e., Google processes the information in the Tool only for

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Tele2's invoice. This is also supported by the agreement between Tele2 and Google regarding the Tool and the data processing agreement applicable to the Tool.

1.3.9 Ensuring that processing does not occur for the recipients' own purposes

According to section 5.3 of the data processing agreement with Google, Google may only process personal data in accordance with Tele2's instructions. Tele2's use of the Tool means that IP addresses are anonymized at the earliest possible stage during the collection process and that the full IP address is never stored or processed on disk by Google. This means that Google cannot process the full IP address for its own or for third-party purposes.

1.3.10 Description of the company's use of the Tool

Tele2 uses the Tool to analyze statistics regarding visits to the Website. All statistics and reports generated via the Tool are presented at an aggregated level, and no actions are taken in relation to individual visitors to the Website within the framework of the Tool.

1.3.11 Own controls of transfers affected by the Schrems II ruling

Following the Schrems II ruling, Tele2 initiated internal work to review all international data transfers in Tele2's operations. This review has also included the Tool.

Tele2 has maintained an ongoing dialogue with Google, which has meant that since August 12, 2020, the transfer of data to Google in the USA has been based on standard contractual clauses for data protection adopted by the Commission. Since the EU Court of Justice in the Schrems II ruling found that the legislation that Google is subject to in the USA does not correspond to the level of protection found in European data protection legislation, supplementary protective measures are necessary when using the standard contractual clauses for data protection adopted by the Commission. In the dialogue with Google, Tele2 has therefore discussed what additional protective measures can be taken in relation to the Tool. It has been noted that the protective measures used in relation to the Tool are IP anonymization (which has been activated by Tele2 since the Tool was introduced). Additionally, Google has ISO270001 certification for the Tool, and Google also uses various encryption solutions in connection with the Tool and the transfer of data to the USA.

1.3.12 Transfer tools according to Chapter V of the Data Protection Regulation

To the extent that personal data is transferred to the USA, the transfer is based on Article 46.2 c of the Data Protection Regulation (standard contractual clauses for data protection adopted by the Commission). Standard contractual clauses apply to the data transfer in the Tool. The standard contractual clauses are not signed by the parties but are included as part of the data processing agreement with Google by reference to these standard contractual clauses in section 10.2 of the data processing agreement.

1.3.13 Control of obstacles to fulfillment in legislation in third countries

In the EDPB's recommendation 01/2020, it is stated, among other things, that pseudonymization and anonymization are additional protective measures that can be taken to achieve a level of protection equivalent to that in Europe and thereby enable a transfer of personal data to the USA based on standard contractual clauses for data protection adopted by the Commission.

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Tele2's assessment, based on the additional protective measures used in connection with the Tool, is therefore that the data is adequately protected and that the level of protection corresponds to that found in European data protection legislation. Tele2 has verified that the supplementary protective measures taken can be implemented in practice and that there is nothing in the legislation of third countries that prevents recipients there from implementing measures to ensure that the level of data protection for individuals guaranteed within the EU/EEA is not undermined.

1.3.14 Additional protective measures taken beyond those implemented by Google

Tele2 has enabled IP anonymization for the Tool.

1.4 What Google LLC has stated

IMY has added to the case a statement from Google LLC (Google) dated April 9, 2021, which Google submitted to the Austrian supervisory authority. The statement addresses questions that IMY and several supervisory authorities have posed to Google regarding the partially joint handling of similar complaints received by these authorities. Tele2 has been given the opportunity to comment on Google's statement. The following is stated in Google's statement regarding the Tool.

A JavaScript code is included on a webpage. When a user visits (calls) a webpage, the code triggers a download of a JavaScript file. Thereafter, the tracking operation for the Tool is performed, which consists of collecting information related to the request in various ways and sending the information to the Tool's servers.

A website administrator who has integrated the Tool on their website can send instructions to Google for processing the data collected. These instructions are transmitted via the so-called tag manager that manages the tracking code that the website administrator has integrated into their website and via the settings of the tag manager. The one who has integrated the Tool can make various settings, for example regarding storage time. The Tool also allows the integrator to monitor and maintain the

stability of their website, for example by staying informed about events such as spikes in visitor traffic or lack of traffic. The Tool also enables a website administrator to measure and optimize the effectiveness of advertising campaigns conducted using other tools from Google.

In this context, the Tool collects the visitor's HTTP requests and information about, among other things, the visitor's browser and operating system. According to Google, an HTTP request for any page contains information about the browser and the device making the request, such as domain name, and information about the browser, such as type, referrer, and language. The Tool stores and reads cookies in the visitor's browser to evaluate the visitor's session and other information about the request. Through these cookies, the Tool enables the identification of unique users (UUID) across browsing sessions, but the Tool cannot identify unique users across different browsers or devices. If a website owner's website has its own authentication system, the website owner can use the ID function to more accurately identify a user across all devices and browsers they use to access the website.

When the information is collected, it is transmitted to the Tool's servers. All data collected via the Tool is stored in the USA.

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Google has implemented, among other things, the following contractual, organizational, and technical safeguards to regulate the transfer of data within the framework of the Tool.

Google has taken contractual and organizational safeguards such as ensuring that the company always conducts a thorough examination of whether a request for access from government authorities regarding user data can be fulfilled. It is lawyers/specially trained personnel who carry out these examinations and investigate whether such a request is in accordance with applicable laws and Google's guidelines. The data subjects are informed about the disclosure, unless prohibited by law or if it would negatively impact an emergency situation. Google has also published a policy on the company's website regarding how such requests for access from government authorities to user data should be handled.

Google has implemented technical safeguards such as protecting personal data from eavesdropping during the transfer of data in the Tool. By default, it uses HTTP Strict Transport Security (HSTS), which instructs browsers to use an encryption protocol for all communication between end users, websites, and the Tool's servers. Such encryption prevents intruders from passively eavesdropping on communication between websites and users.

Google also employs an encryption technique to protect personal data known as "data at rest" in data centers, where user data is stored on a disk or backup media to prevent unauthorized access to the data.

In addition to the above measures, website owners can use IP anonymization by utilizing the settings provided by the Tool to limit Google's use of personal data. Such settings primarily include enabling IP anonymization in the Tool's code, which means that IP addresses are truncated and contribute to data minimization. If the IP anonymization service is fully utilized, the anonymization of the IP address occurs almost immediately after the request has been received.

Google also restricts access to the data from the Tool through access control and requires that all personnel undergo training regarding information security.

2 Justification of the Decision

2.1 Framework for the Review

The Swedish Authority for Privacy Protection (IMY) has, based on the complaint in the matter, only reviewed whether Tele2 transfers personal data to the third country USA within the framework of Tele2's use of the Tool and whether Tele2 has legal support for this under Chapter V of the General Data Protection Regulation. The supervision does not cover whether Tele2's processing of personal data is otherwise compliant with the General Data Protection Regulation.

2.2 It Concerns the Processing of Personal Data

2.2.1 Applicable Provisions, etc.

For the General Data Protection Regulation to be applicable, personal data must be processed.

According to Article 1.2, the General Data Protection Regulation aims to protect the fundamental rights and freedoms of natural persons, particularly their right to the protection of personal data.

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According to Article 4.1 of the Regulation, personal data is defined as “any information relating to an identified or identifiable natural person (hereinafter referred to as a data subject), where an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, or online identifiers, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.” To determine whether a natural person is identifiable, all means that may reasonably be used, either by the data controller or by another person, to identify the natural person, directly or indirectly, should be considered (Recital 26 of the General Data Protection Regulation).

The concept of personal data may encompass all information, both objective and subjective, provided that it “relates to” a specific person, which it does if it is linked to the person due to its content, purpose, or effect.⁴

The term “indirect” in Article 4.1 of the General Data Protection Regulation suggests that it is not necessary for the information itself to enable the identification of the data subject for it to be considered personal data.⁵ Furthermore, Recital 26 of the General Data Protection Regulation states that to determine whether a natural person is identifiable, all means, such as “singling out” in the English version, that may reasonably be used, either by the data controller or by another person, to identify the natural person, directly or indirectly, should be taken into account. To establish whether means can reasonably be expected to be used to identify the natural person, all objective factors, such as costs and time required for identification, considering the available technology at the time of processing, should be taken into account. Article 4.5 of the Regulation indicates that pseudonymization refers to the processing of personal data in such a way that the personal data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organizational measures that ensure that the personal data cannot be attributed to an identified or identifiable natural person.

So-called “online identifiers” (sometimes referred to as “internet identifiers”) – e.g., IP addresses or information stored in cookies – can be used to identify a user, particularly when combined with other similar types of information. According to Recital 30 of the General Data Protection Regulation, natural persons can be linked to online identifiers provided by their devices, such as IP addresses, cookies, or other identifiers. This can leave traces that, especially in combination with unique identifiers and other data collected, can be used to create profiles of natural persons and identify them.

The Court of Justice of the European Union in the Breyer ruling established that a person is not considered identifiable through a certain piece of information if the risk of identification is practically negligible, which it is if identifying the person in question is prohibited by law or impossible to carry out in practice.⁶ However, the Court of Justice of the European Union in the M.I.C.M. ruling from 2021 and in the Breyer ruling established that dynamic IP addresses constitute personal data in relation to the entity processing them, when that entity also has a legal possibility to identify the holders of

4 Court of Justice of the European Union ruling Nowak, C-434/16, EU:C:2017:994, paragraphs 34–35.

5 Court of Justice of the European Union ruling Breyer, C-582/14, EU:C:2016:779, paragraph 41.

6 Court of Justice of the European Union ruling Breyer, C-582/14, EU:C:2016:779, paragraphs 45–46.

the internet connections with the help of the additional information that third parties have access to.⁷

2.2.2 Assessment by the Swedish Data Protection Authority

To determine whether the data processed through the Tool constitutes personal data, the Swedish Data Protection Authority (IMY) will consider whether Google or Tele2, through the implementation of the Tool, can identify individuals, e.g., the complainant, when visiting the Website or if the risk of that is negligible.⁸

IMY believes that the data being processed constitutes personal data for the following reasons.

The investigation shows that Tele2 implemented the Tool by inserting a JavaScript code (a tag) provided by Google into the source code of the Website. While the page loads in the visitor's browser, the JavaScript code is loaded from Google LLC's servers and executed locally in the visitor's browser. A cookie is simultaneously set in the visitor's browser and saved on the computer. The cookie contains a text file that collects information about the visitor's navigation on the Website. Among other things, a unique identifier is established in the value of the cookie, and this unique identifier is generated and managed by Google.

When the complainant visited the Website, or a subpage of the Website, the following information was transmitted via the JavaScript code from the complainant's browser to Google LLC's servers:

1. Unique identifier(s) that identified the browser or device used to visit the Website as well as a unique identifier that identified Tele2 (i.e., Tele2's account ID for Google Analytics).
2. Web address (URL) and HTML title of the website and webpage that the complainant has visited.
3. Information about the browser, operating system, screen resolution, language settings, as well as the date and time of access to the Website.
4. The complainant's IP address.

During the complainant's visit, the aforementioned identifiers (according to point 1 above) were set in cookies named “_gads,” “_ga,” and “_gid” and were subsequently transmitted to Google LLC. These identifiers have been created for the purpose of distinguishing individual visitors, such as the complainant. The unique identifiers thus make the visitors to the Website identifiable. Even if such unique identifiers (according to point 1 above) in themselves would not be considered to make individuals identifiable, it must be taken into account that these unique identifiers in the current case can be combined with additional elements (according to points 2–4 above) and that it is possible to draw conclusions regarding the information (according to points 2–4 above) that results in the data constituting personal data, regardless of whether the IP address has not been transmitted in its entirety.

Combining data (according to points 1–4 above) means that individual visitors to the Website become even more distinguishable. It is thus possible to identify individual visitors to the Website. This is in itself sufficient for it to be considered personal data. Knowledge of the actual visitor's name or physical address is not required, as the distinction (through the word "selection" in recital 26 in

⁷ Judgment of the Court of Justice of the European Union M.I.C.M, C-597/19, EU:C:2021:492, paragraphs 102–104 and judgment Breyer, C-582/14, EU:C:2016:779, paragraph 49.

⁸ See the Administrative Court of Appeal in Gothenburg's judgment on November 11, 2021, in case no. 2232-21, agreeing with the lower court's assessment.

The General Data Protection Regulation, "singling out" in the English version) in itself is sufficient to make the visitor indirectly identifiable. It is not required that Google or Tele2 intends to identify the

complainant; rather, the possibility of doing so is sufficient to determine whether it is possible to identify a visitor. Objective means that can reasonably be used either by the data controller or by someone else are all means that can reasonably be used for the purpose of identifying the complainant. Examples of objective means that can reasonably be used include access to additional information from a third party that would make it possible to identify the complainant, taking into account both the available technology at the time of identification and the cost (time required) for the identification. IMY notes that the Court of Justice of the European Union has established through the judgments M.I.C.M. and Breyer that dynamic IP addresses constitute personal data in relation to the entity processing them, when that entity also has a legal possibility to identify the holders of the internet connections using additional information that a third party possesses. IP addresses do not lose their character as personal data solely because the means for identification lie with a third party. The Breyer judgment and the M.I.C.M. judgment should be interpreted based on what is actually stated in the judgments, namely that if there is a legal possibility to access supplementary information for the purpose of identifying the complainant, it is objectively clear that there is a "means that can reasonably be used" to identify the complainant. According to IMY, the judgments should not be read in the opposite way, such that it must be demonstrated that there is a legally regulated possibility to access data that can link IP addresses to physical persons for the IP addresses to be considered personal data. An interpretation of the concept of personal data that requires a legal possibility to link such data to a physical person would, according to IMY, represent a significant limitation of the regulation's scope of protection and open up possibilities to circumvent the protection in the regulation. This interpretation would, among other things, contradict the purpose of the regulation according to Article 1.2 of the General Data Protection Regulation. The Breyer judgment was decided under the previously applicable Directive 95/46, and the concept of "singling out" according to Recital 26 of the current regulation (that knowledge of the actual visitor's name or physical address is not required, as the distinction itself is sufficient to make the visitor identifiable) was not stated in the previously applicable directive as a method for identifying personal data.

In this context, there are also other data (according to points 1–3 above) that the IP address can be combined with to enable identification. Google's action regarding the truncation of an IP address means that it is still possible to distinguish the IP address, as it can be linked to other transmitted data to a third country (to the USA). This enables identification, which in itself is sufficient for the data together to constitute personal data.

Furthermore, several other supervisory authorities within the EU/EEA have decided that the transfer of personal data to third countries has occurred when using the Tool, as it has been possible to combine IP addresses with other data (according to points 1–3 above), thereby enabling the distinction of data and identification of the IP address.

9 Court of Justice of the European Union judgment M.I.C.M, C-597/19, EU:C:2021:492, paragraphs 102–104 and judgment Breyer, C-582/14 EU:C:2016:779, paragraph 49.

10 Truncation of an IP address means that asterisks or zeros replace other digits in the last octets (the last digits in an IP address, a number between 0 and 255), which in itself can only be one of 256 alternatives. The effect of this action is that it is still possible to distinguish the IP address from the other IP addresses (255 alternatives), as the IP address can be linked to other transmitted data (e.g., information about the device and time of the visit) to a third country.

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which in itself is sufficient to determine that it concerns the processing of personal data.11

IMY notes that there may also be reasons to compare IP addresses with pseudonymized personal data. Pseudonymization of personal data means

according to Article 4.5 of the Data Protection Regulation that the data – similar to dynamic IP addresses – cannot be directly attributed to a specific data subject without the use of supplementary information. According to Recital 26 of the Data Protection Regulation, such data should be considered as data concerning an identifiable natural person.

A narrower interpretation of the concept of personal data would, according to IMY, undermine the scope of the right to protection of personal data, which is guaranteed in Article 8 of the Charter of Fundamental Rights of the European Union, as it would allow data controllers to specifically identify individuals together with personal data (e.g., when they visit a specific website) while denying individuals the right to protection against the dissemination of such data about them. Such an interpretation would undermine the level of protection for individuals and would not be consistent with the broad scope that data protection regulations have been given in the case law of the Court of Justice of the European Union.¹²

Furthermore, Tele2 has, by the complainant being logged into their Google account during the visit to the Website, processed data from which conclusions could be drawn about the individual based on their registration with Google. From Google's statement, it appears that the implementation of the Tool on a website allows for information to be obtained that a user of a Google account (i.e., a registered user) has visited the website in question. Google does state that certain conditions must be met for Google to receive such information, e.g., that the user (the complainant) has not disabled processing for and display of personalized ads. Since the complainant was logged into their Google account during the visit to the Website, Google may still have had the opportunity to obtain information about the logged-in user's visit to the Website. The fact that it does not appear from the complaint that no personalized ads were displayed does not mean that Google cannot obtain information about the logged-in user's visit to the Website.

IMY finds, in light of the unique identifiers that can identify the browser or device, the possibility of tracing the individual through their Google account, the dynamic IP addresses, and the possibility of combining these with additional information, that Tele2's use of the Tool on a webpage constitutes the processing of personal data.

2.3 Tele2 is the data controller for the processing

The data controller is, among other things, a legal entity that alone or jointly with others determines the purposes and means of processing personal data (Article 4.7 of the Data Protection Regulation). The data processor is, among other things, a legal entity that processes personal data on behalf of the data controller (Article 4.8 of the Data Protection Regulation).

¹¹ Austria's supervisory authority (Datenschutzbehörde) decision of April 22, 2022, regarding complaints

against Google Analytics represented by NOYB with local case number 1354838270, France's supervisory

authority (CNIL) decision of February 10, 2022, represented by NOYB, and Italy's supervisory authority (Garante) decision of June 9, 2022, regarding complaints against Google Analytics represented by NOYB,

local case number 9782890.

¹² See, for example, the Court of Justice of the European Union's judgment in *Latvijas Republikas Saeima*

(*Points de pénalité*), C-439/19, EU:C:2021:504, paragraph 61, judgment in *Nowak*, C-434/16, EU:C:2017:994,

paragraph 33, and judgment in *Rijkeboer*, C-553/07, EU:C:2009:293, paragraph 59.

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The responses provided by Tele2 indicate that the company has made the decision to implement the

Tool on the Website. Furthermore, it is evident that Tele2's purpose in doing so has been to enable the company to analyze how the Website is used, particularly to monitor the usage of the website over time.

The Swedish Data Protection Authority (IMY) finds that Tele2, by deciding to implement the Tool on the Website for the aforementioned purpose, has established the purposes and means of the collection and the subsequent transfer of these personal data. Tele2 is therefore the data controller for this processing.

2.4 Transfer of personal data to third countries

The investigation shows that the data collected via the Tool is stored by Google LLC in the USA. Thus, the personal data collected via the Tool is transferred to the USA.

The question is therefore whether Tele2's transfer of personal data to the USA is compliant with Article 44 of the General Data Protection Regulation (GDPR) and has legal support in Chapter V.

2.4.1 Applicable provisions, etc.

According to Article 44 of the GDPR, titled "General principle for the transfer of data," the transfer of personal data that is being processed or is intended to be processed after being transferred to a third country – i.e., a country outside the EU/EEA – may only occur if the data controller and the data processor, subject to other provisions of the GDPR, meet the conditions set out in Chapter V. All provisions in the mentioned chapter must be applied to ensure that the level of protection of natural persons guaranteed by the GDPR is not undermined.

Chapter V of the GDPR contains tools that can be used for transfers to third countries to ensure a level of protection that is essentially equivalent to that guaranteed within the EU/EEA. This may include transfers based on a decision regarding an adequate level of protection (Article 45) and transfers subject to appropriate safeguards (Article 46). Additionally, there are exceptions for specific situations (Article 49).

The Court of Justice of the European Union (CJEU) in the Schrems II ruling invalidated the decision on adequate protection that previously applied regarding the USA. Since a decision on adequate protection has been lacking since July 2020, transfers to the USA cannot be based on Article 45.

Article 46.1 stipulates, among other things, that in the absence of a decision in accordance with Article 45.3, a data controller or a data processor may only transfer personal data to a third country after having implemented appropriate safeguards, and provided that statutory rights for data subjects and effective legal remedies for data subjects are available. Article 46.2(c) states that such appropriate safeguards may take the form of standard contractual clauses adopted by the Commission in accordance with the review procedure referred to in Article 93.2.

In the Schrems II ruling, the CJEU did not invalidate standard contractual clauses as transfer tools. However, the Court noted that they are not binding on authorities in the third country. The CJEU stated that "[e]ven if this is the case,..."

13 Commission Implementing Decision (EU) 2016/1250 of July 12, 2016, pursuant to the European Parliament and Council Directive 95/46/EC on whether an adequate level of protection is ensured by the Privacy Shield between the European Union and the United States and the CJEU ruling in Facebook Ireland and Schrems (Schrems II), C-311/18, EU:C:2020:559.

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There are situations where the recipient of such a transfer, depending on the legal situation and applicable practices in the relevant third country, can guarantee the necessary protection of data solely based on the standardized data protection clauses; however, there are other situations in which the provisions of these clauses cannot be a sufficient means to practically ensure effective protection of the personal data transferred to the relevant third country." According to the Court of Justice of the European Union, this is "inter alia the case when the legislation of that third country allows the

authorities in that third country to interfere with the rights of the data subjects regarding that data.”¹⁴ The reason the Court of Justice of the European Union invalidated the decision on adequate protection level with the USA was how the American intelligence services can access personal data. According to the court, the conclusion of standard contractual clauses cannot in itself ensure a level of protection required under Article 44 of the Data Protection Regulation, as the guarantees specified therein do not apply when such authorities request access. The Court of Justice of the European Union therefore stated the following:

“It follows that the standardized data protection clauses adopted by the Commission pursuant to Article 46.2 c of the same regulation are intended solely to provide the data controllers or their data processors established in the Union with contractual safeguards that are applied uniformly in all third countries and thus independently of the level of protection ensured in each of those countries. Since these standardized data protection clauses, by their nature, cannot lead to safeguards that go beyond a contractual obligation to ensure that the level of protection required under Union law is observed, it may be necessary, depending on the situation prevailing in a particular third country, for the data controller to take additional measures to ensure that the level of protection is observed.”¹⁵

In the European Data Protection Board (EDPB) recommendations on the consequences of the judgment¹⁶, it is clarified that if the assessment of legislation and practice in the third country indicates that the protection that the transfer tool is supposed to guarantee cannot be maintained in practice, the exporter, within the framework of its transfer, must generally either suspend the transfer or take appropriate additional protective measures. The EDPB states that “additional measures can only be considered effective in the sense intended in the Court of Justice of the European Union’s judgment ‘Schrems II’ if and to the extent that they – alone or in combination – address the specific deficiencies identified in the assessment of the situation in the third country regarding its laws and practices applicable to the transfer.”¹⁷

From the EDPB’s recommendations, it appears that such additional protective measures can be divided into three categories: contractual, organizational, and technical.¹⁸

Regarding contractual measures, the EDPB states that such measures “[...] can complement and strengthen the safeguards provided by the transfer tool and relevant legislation in the third country [...]. Given that the contractual measures are of such a nature that they generally cannot bind the authorities in that third country as they are not parties to the agreement, these measures often need to

14 Paragraph 125-126.

15 Paragraph 133.

16 EDPB, Recommendations 01/2020 on measures that supplement transfer tools to ensure compliance with the EU level of protection of personal data, Version 2.0, adopted on June 18, 2021 (hereinafter “EDPB Recommendations 01/2020”).

17 EDPB Recommendations 01/2020, paragraph 75; IMY’s translation.

18 EDPB Recommendations 01/2020, paragraph 52.

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is combined with other technical and organizational measures to provide the level of data protection required [...]”.¹⁹

Regarding organizational measures, the EDPB emphasizes “[c]hoosing and implementing one or more of these measures will not necessarily and systematically ensure that [a] transfer meets the fundamental equivalence standard required under EU law. Depending on the specific circumstances surrounding the transfer and the assessment made of the third country’s legislation, organizational measures are required to complement contractual and/or technical measures to ensure a level of protection for personal data that is essentially equivalent to that guaranteed within the EU/EEA.”²⁰

Regarding technical measures, the EDPB points out that “these measures will be

particularly necessary when the legislation of that country imposes obligations on the importer that conflict with the guarantees in Article 46 of the data protection regulation's transfer tools and that may particularly infringe upon the contractual guarantee of essentially equivalent protection against access by authorities in that third country to these data.”²¹ The EDPB states that “the measures specified [in the Recommendations] are intended to ensure that access to the transferred data by public authorities in third countries does not infringe upon the appropriateness of the suitable protective measures in Article 46 of the data protection regulation's transfer tools. These measures would be necessary to guarantee an essentially equivalent level of protection as that guaranteed within the EU/EEA, even if access by public authorities is consistent with the legislation of the importer's country, where such access in practice goes beyond what is necessary and proportionate in a democratic society. The purpose of these measures is to prevent potentially unlawful access by preventing authorities from identifying the data subjects, drawing conclusions about them, singling them out in another context, or linking the transferred data to other datasets that may include online identifiers provided by the entities, applications, tools, and protocols used by data subjects in other contexts.”²²

2.4.2 Assessment of the Swedish Data Protection Authority

2.4.2.1 Applicable Transfer Tool

The investigation shows that Tele2 and Google have entered into standardized data protection clauses (standard contractual clauses) in the sense of Article 46 for the transfer of personal data to the USA. These clauses are in line with those published by the European Commission in Decision 2021/914 of June 4, 2021, and thus a transfer tool according to Chapter V of the data protection regulation.

2.4.2.2 Legislation and Situation in the Third Country

As indicated by the ruling in Schrems II, the use of standard contractual clauses may require additional protective measures as a complement. Therefore, an analysis of the legislation in the relevant third country needs to be conducted.

The Swedish Data Protection Authority believes that the analysis already conducted by the Court of Justice of the European Union in the ruling of Schrems II, which pertains to similar circumstances, is relevant and current, and can thus be added to

19 EDPB Recommendations 01/2020, paragraph 99; Translation by the Swedish Data Protection Authority.

20 EDPB Recommendations 01/2020, paragraph 128; Translation by the Swedish Data Protection Authority.

21 EDPB Recommendations 01/2020, paragraph 77; Translation by the Swedish Data Protection Authority.

22 EDPB Recommendations 01/2020, paragraph 79; Translation by the Swedish Data Protection Authority.

the basis for the assessment in the matter without any further analysis of the legal situation in the USA needing to be conducted.

Google LLC, as the importer of the data to the USA, shall be classified as a provider of electronic communication services in the sense referred to in 50 US Code § 1881 (b)(4). Google is therefore subject to monitoring by US intelligence agencies in accordance with 50 US § 1881a (“702 FISA”) and is thus obliged to provide the US government with personal data when 702 FISA is invoked.

The Court of Justice of the European Union stated in the ruling Schrems II that the US surveillance programs based on 702 FISA, Executive Order 12333 (hereinafter “E.O. 12333”), and Presidential

Policy Directive 28 (hereinafter “PPD-28”) in US legislation do not meet the minimum requirements that apply under Union law according to the principle of proportionality. This means that the surveillance programs based on these provisions cannot be considered limited to what is strictly necessary. The Court also noted that the surveillance programs do not provide the data subjects with rights that can be asserted against US authorities in court, which means that these individuals do not have the right to an effective remedy.²³

In this context, IMY notes that the use of the European Commission's standard contractual clauses is not in itself sufficient to achieve an acceptable level of protection for the transferred personal data.

2.4.2.3 Additional protective measures implemented by Google and Tele2

The next question is whether Tele2 has taken sufficient additional protective measures.

As the data controller and exporter of the personal data, Tele2 is obliged to ensure compliance with the rules of the General Data Protection Regulation. This responsibility includes, among other things, assessing in each individual case when transferring personal data to third countries what additional protective measures should be used and to what extent, including evaluating whether the measures taken by the recipient (Google) and the exporter (Tele2) together are sufficient to achieve an acceptable level of protection.

2.4.2.3.1 Google's additional protective measures

Google LLC, as the importer of personal data, has taken contractual, organizational, and technical measures to complement the standard contractual clauses. Google described in a statement on April 9, 2021, that the company has taken measures. The question is whether the additional protective measures taken by Tele2 and Google LLC are effective, in other words, whether they prevent US intelligence agencies from accessing the transferred personal data.

Regarding the legal and organizational measures, it can be noted that neither information to users of the Tool (such as Tele2),²⁴ the publication of a transparency report, nor a publicly available “government request handling policy” prevents or reduces the opportunities for US intelligence agencies to access the personal data. Furthermore, it is not described what it means that Google LLC conducts a “careful examination of each request” regarding the “legality” from US intelligence agencies. IMY notes that this does not affect the legality of

23 Point 184 and 192. Point 259 and subsequent.

24 Regardless of whether such a notification would even be permitted under US law.

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such requests, as they are not in compliance with the requirements of EU data protection regulations according to the Court of Justice of the European Union.

Regarding the technical measures taken, it can be noted that neither Google LLC nor Tele2 has clarified how the described measures—such as the protection of communication between Google's services, protection of data during transfer between data centers, protection of communication between users and websites, or “physical security”—prevent or reduce the capabilities of U.S. intelligence agencies to gain access to the data under U.S. law.

Concerning the encryption technology used—for example, for so-called “data at rest” in data centers, which Google LLC mentions as a technical measure—Google LLC, as the importer of personal data, still has an obligation to grant access to or hand over imported personal data that Google LLC controls, including any encryption keys required to make the data intelligible.²⁵ Thus, such a technical measure cannot be considered effective as long as Google LLC has the ability to access personal data in plaintext.

Regarding what Google LLC has stated about “to the extent that information for measurement in Google Analytics transferred by website owners constitutes personal data, they may be considered pseudonymized,” it can be noted that universally unique identifiers (UUID) are not covered by the concept of pseudonymization in Article 4.5 of the Data Protection Regulation. Pseudonymization can

be a privacy-enhancing technique, but the unique identifiers have, as described above, the specific purpose of distinguishing users and not functioning as protection. Furthermore, individuals can be identified through what has been stated above regarding the possibility of combining unique identifiers and other data (e.g., metadata from browsers or devices and the IP address) and the ability to link such information to a Google account for logged-in users.

Regarding Google's measure of "anonymization of IP addresses" in the form of truncation²⁶, it is not clear from Google's response whether this measure occurs before the transfer, or if the entire IP address is transferred to the U.S. and truncated only after the transfer to the U.S. From a technical perspective, it has thus not been demonstrated that there is no potential access to the entire IP address before the last octet is truncated.

In this context, IMY concludes that the additional protective measures taken by Google are not effective, as they do not prevent U.S. intelligence agencies from accessing personal data or render such access ineffective.

2.4.2.3.2 Tele2's Own Additional Protective Measures

Tele2 has stated that the company has taken additional protective measures beyond those taken by Google. According to Tele2, these consist of activating the function for truncating²⁷ the last octet of the IP address before the data is transferred to Google, which means that the last octet is masked.

As mentioned above regarding Google's measures, it is not clear from Google's response whether this measure occurs before the transfer or if the entire IP address is transferred to the U.S. and

25 See EDPB's Recommendations 01/2020, paragraph 81.

26 Truncation of an IP address means that asterisks or zeros replace other digits in the last octets (the last digits in an IP address, a number between 0 and 255).

27 Truncation of an IP address means that asterisks or zeros replace other digits in the last octets (the last digits in an IP address, a number between 0 and 255).

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is truncated only after the transfer to the USA. From a technical perspective, it has thus not been demonstrated that there is no potential access to the entire IP address before the last octet is truncated.

Even if truncation were to occur before the transfer takes place, it is not a sufficient measure, as the truncated IP address can be linked with other information, as IMY noted above in section 2.2.2.

Truncating an IP address means that only the last octet is masked, which in itself can only be one of 256 options (i.e., in the range of 0–255), and because the truncated IP address can be distinguished from other IP addresses, this information can be linked with other data (as noted above in section 2.2.2) and enable identification, which in itself is sufficient to determine whether the data together constitutes personal data. Although masking the last octet constitutes a privacy-enhancing measure, as it limits the scope of the data that authorities can access (in third countries), IMY notes that it is still possible to link the transferred data to other information that is also transferred to Google LLC (in third countries).

Against this background, IMY finds that the additional measures taken by Tele2, beyond the additional measures taken by Google, are also not sufficiently effective to prevent U.S. intelligence agencies from accessing personal data or to render such access ineffective.

2.4.2.3.3 Conclusion of the Swedish Data Protection Authority

IMY finds that the measures taken by Tele2 and Google, either individually or collectively, are not sufficiently effective to prevent U.S. intelligence agencies from accessing personal data or to render such access ineffective.

In light of this, IMY finds that neither standard contractual clauses nor the other measures invoked by Tele2 can provide the support for the transfer as specified in Chapter V of the General Data Protection

Regulation.

By means of this transfer of data, Tele2 therefore undermines the level of protection for personal data for data subjects guaranteed in Article 44 of the General Data Protection Regulation.

IMY therefore concludes that Tele2 Sverige AB violated Article 44 of the General Data Protection Regulation at least during the period from August 14, 2020, to May 2023.

3 Choice of Intervention

3.1 Legal Regulation

In the event of violations of the General Data Protection Regulation, IMY has a number of corrective powers available under Article 58.2 a–j of the General Data Protection Regulation, including reprimands, orders, and administrative fines.

IMY shall impose administrative fines in addition to or instead of other corrective measures referred to in Article 58.2, depending on the circumstances of each individual case.

Each supervisory authority shall ensure that the imposition of administrative fines in each individual case is effective, proportionate, and dissuasive. This is stated in Article 83.1 of the General Data Protection Regulation.

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In Article 83.2 of the Data Protection Regulation, the factors to be considered in determining whether an administrative fine should be imposed, as well as in determining the amount of the fine, are specified. In the case of a minor infringement, IMY may, as stated in Recital 148, instead of imposing a fine, issue a reprimand in accordance with Article 58.2 b of the Regulation. Consideration should be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as previous relevant infringements.

The EDPB has adopted guidelines on the calculation of administrative fines under the Data Protection Regulation aimed at creating a harmonized method and principles for calculating fines.²⁸

3.2 Should a fine be imposed?

IMY has found above that the transfers of personal data to the USA that occur via the Google Analytics tool, for which Tele2 is responsible, violate Article 44 of the Data Protection Regulation. Infringements of that provision may, according to Article 83, lead to administrative fines.

In light of, among other things, the fact that Tele2 has transferred a large amount of personal data, that the processing has been ongoing for a long time, and that the transfer has meant that the personal data could not be guaranteed the level of protection provided in the EU/EEA, this is not a minor infringement. Tele2 shall therefore be imposed an administrative fine for the established infringement.

3.2.1 What amount should the fine be set at?

In determining the maximum amount for an administrative fine to be imposed on a company, the definition of the term company used by the Court of Justice of the European Union in the application of Articles 101 and 102 of the TFEU should be used (see Recital 150 of the Data Protection Regulation). The case law of the Court indicates that this includes any entity engaged in economic activity, regardless of the legal form of the entity and the manner of its financing, and even if the entity legally consists of several natural or legal persons.²⁹

According to Article 83.5 c of the Data Protection Regulation, in the event of an infringement of, among other things, Article 44, administrative fines of up to 20 million EUR or, if it concerns a company, up to 4% of the total global annual turnover during the previous financial year shall be imposed, depending on which value is higher.

IMY assesses that the company's turnover to be used as the basis for calculating the administrative fine is Tele2 Sverige AB's annual report for the year 2022. The company had a turnover of approximately 28,102,000,000 SEK during that financial year. The highest fine that can be established in this case is four percent of this amount, which is approximately 1,124,080,000 SEK.

In determining the amount of the fine, IMY shall take into account the seriousness of the infringement and consider both aggravating and mitigating circumstances.

28 EDPB Guidelines 8/2020 Guidelines 04/2022 on the calculation of administrative fines under the GDPR (adopted for public consultation on May 12, 2022).

29 See Judgment in Akzo Nobel, C-516/15, EU:C:2017:314, paragraph 48

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decide on an administrative sanction amount that is effective, proportional, and deterrent in the individual case.

The Swedish Authority for Privacy Protection (IMY) assesses that the following factors are significant for the evaluation of the seriousness of the violation.

In assessing the severity of the violation, there are initially factors that warrant a more serious view of the infringement. Tele2 has transferred a large amount of personal data to a third country. The transfer has meant that the personal data could not be guaranteed the level of protection provided in the EU/EEA, which in itself is a serious violation. Furthermore, it is aggravating that the transfer of personal data has been ongoing for a longer period, namely since August 14, 2020, and is still ongoing, and that it has occurred systematically. IMY also considers that approximately 3 years have passed since the Court of Justice of the European Union invalidated the Commission's decision on adequate protection in the USA on July 16, 2020, thereby changing the conditions for the transfer of personal data to the USA.

The EDPB has during this time provided recommendations regarding the consequences of the ruling, which were subject to public consultation on November 10, 2020, and adopted in final form on June 18, 2021. In addition, several other supervisory authorities within the EU/EEA have issued orders to cease the use of the Tool until sufficiently effective security measures have been implemented by the data controllers. The decisions have included cases where the data controllers have also taken measures such as "anonymization of IP addresses" in the form of truncation.

Despite these recommendations and decisions clearly indicating the risks and difficulties in ensuring an adequate level of protection for data transfers to companies in the USA, Tele2 has continued to use the Tool from August 14, 2020, at least until May 2023, without taking any further protective measures. Google's action regarding the truncation of the IP address means that it is still possible to distinguish the IP address, as it can be linked to other transferred data to a third country (to the USA). This enables identification, which means that the data together constitutes personal data.

Tele2 is one of the major players in the telecommunications industry in Sweden. This involves data concerning a large number of registered individuals who can be indirectly identified and whose data can be linked to other information about them. Regarding the nature of the data, it follows from Tele2's own purpose with the processing—namely, among other things, to be able to draw conclusions about how the registered individuals navigate to and find the Website—that the data collectively allows for relatively precise conclusions about the privacy of the registered individuals and to map them, such as regarding what they purchase and which services they are interested in over time and hold with the company. Tele2's processing of personal data poses risks for serious violations.

30 Commission Implementing Decision (EU) 2016/1250 of July 12, 2016, pursuant to the European Parliament and Council Directive 95/46/EC on whether an adequate level of protection is ensured by the Privacy Shield between the EU and the United States.

31 Austria's supervisory authority (Datenschutzbehörde) decision of April 22, 2022, regarding complaints against Google Analytics represented by NOYB with local case number 1354838270, France's supervisory authority (CNIL) decision of February 10, 2022, represented by NOYB, and Italy's supervisory authority (Garante) decision of June 9, 2022, regarding complaints against Google

Analytics represented by NOYB, local case number 9782890.

32 Truncation of IP address "anonymization of IP address" means that asterisks or zeros replace other digits in the last octets (the last digits in an IP address, a number between 0 and 255), which in itself can only be one of 256 options. The effect of this measure means that it is still possible to distinguish the IP address from the other IP addresses (255 options), as the IP address can be linked to other transferred data (e.g., information about the device and time of the visit) to a third country (to the USA).

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of individuals' freedoms and rights, which imposes a particular responsibility on Tele2 that entails high requirements for transfers to third countries, where IMY collectively assesses that Tele2 has not demonstrated that the company has conducted a sufficient analysis and mapping and has not taken the necessary security measures to limit the risks for the registered individuals.

IMY also notes that there are factors that speak in the opposite direction. IMY considers the special situation that has arisen following the ruling and the interpretation of the EDPB's recommendations, where there has been a gap after the transfer tool to the USA was invalidated by the EU Court of Justice according to the Commission's previous decision. IMY also takes into account that Tele2 has taken certain, albeit insufficient, measures to limit the personal data that was transferred by activating "anonymization of IP addresses" through truncation. Tele2 has conducted an analysis and mapping of the lifecycle of personal data in the Tool. This circumstance is also taken into account when assessing the severity of the violations.

Overall, IMY assesses, in light of the circumstances presented, that the current violations are of low severity. The starting point for calculating the sanction fee should therefore be set low in relation to the current maximum amount.

In addition to the assessment of the severity of the violation, IMY will assess whether there are any aggravating or mitigating circumstances that are relevant to the size of the sanction fee. IMY assesses that there are no additional aggravating or mitigating circumstances, beyond those considered in the assessment of severity, that affect the size of the sanction fee.

Based on a comprehensive assessment of the aforementioned circumstances, the high turnover in relation to the established violations, and in light of the fact that the administrative sanction fee should be effective, proportionate, and deterrent, IMY assesses that the sanction fee can remain at 12,000,000 (twelve million) kronor.

This decision has been made by the Director General Lena Lindgren Schelin after presentation by the lawyer Sandra Arvidsson. In the final processing, the Chief Legal Officer David Törngren, the Unit Manager Catharina Fernquist, and the IT and Information Security Specialist Mats Juhlén have also participated.

Lena Lindgren Schelin, 2023-06-30 (This is an electronic signature)

Appendix

Appendix 1 – Information on payment of the sanction fee

33 Austria's supervisory authority (Data Protection Authority) decision of April 22, 2022 regarding complaints against Google Analytics represented by NOYB with local case number 1354838270, France's supervisory authority (CNIL) decision of February 10, 2022 represented by NOYB, and Italy's supervisory authority (Garante) decision of June 9, 2022 regarding complaints against Google Analytics represented by NOYB, local case number 9782890.

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4 Appeal Reference

4.1 How to Appeal

If you wish to appeal the decision, you must write to the Swedish Authority for Privacy Protection. Indicate in the letter which decision you are appealing and the change you are requesting. The appeal must be received by the Swedish Authority for Privacy Protection no later than three weeks from the day you received notice of the decision. If the appeal is submitted in a timely manner, the Swedish Authority for Privacy Protection will forward it to the Administrative Court in Stockholm for consideration.

You may email the appeal to the Swedish Authority for Privacy Protection if it does not contain any privacy-sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.